

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X Index No. 27723/2018 E
ANTHONY BARKSDALE,
Plaintiffs, **COMPLAINT**

-against-

THE CITY OF NEW YORK, JAMES RODRIGUEZ, and
JOHN DOES # 1-3, being the names of New York City Police
Officers whose names are presently unknown to Plaintiffs,
Defendants.

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Plaintiff ANTHONY BARKSDALE, through his counsel, for his complaint,
states the following upon information and belief:

PARTIES

1. Plaintiff ANTHONY BARKSDALE is an individual.
2. Defendant THE CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation organized under the laws of the State of New York, in and as the City of New York.
3. Defendant JAMES RODRIGUEZ is an individual who is a New York City Police Department officer.
4. Defendant JOHN DOES # 1-3 are New York City Police Department officers whose names and addresses are presently unknown to Plaintiff.
5. The individual Defendants (that is, the individual police officers) are being sued both in their individual capacity and in their official capacity as police officers employed by Defendant CITY.

SERVICE OF NOTICE OF CLAIM

6. Plaintiff has served a notice of claim(s) upon Defendant CITY.
7. At least 30 days have elapsed since the service of such notice of claim(s) and that adjustment or payment has been neglected or refused.
8. Some or all of the causes of action in this lawsuit are not govern by state law and, thus, the requirement of the service of a notice of claim does not apply.

FACTS

9. On April 28, 2016 at about 4:30 P.M., Plaintiff was lawfully a passanger being driven in a car.
10. On April 28, 2016, Defendant JAMES RODRIGUEZ (Shield # 025905) and JOHN DOES # 1 - 3 were New York City Police Department officers (all collectively will be hereinafter referred to as "Defendant Police Officers.")
11. On April 28, 2016, while Plaintiff, who is black, was pulled over, pulled over in the car in which he was a passenger and was arrested for no reason by Defendant Police Officers.
12. A reasonable person or police officer should have known that Plaintiff had committed no crime.
13. Defendant Police Officers had no warrant arrest Plaintiff.
14. Defendant Police Officers otherwise had not other lawful reasons to arrest Plaintiff.
15. Notwithstanding, Defendant Police Officers arrested and handcuffed

Plaintiff.

16. Prior to being handcuffed, Plaintiff attempted to inform Defendant Police Officers that he had committed no crime and that he did not want be handcuffed and go to jail, but Plaintiff went peacefully and submitted without resistance to the false arrest.

17. Upon arrival at the jail, Plaintiff was subjected to a humiliating search and was deprived of all money and personal belongings.

18. Plaintiff was then incarcerated in a cell with criminals.

19. Eventually, Plaintiff was released from jail after being in custody for a long time.

20. After being released from jail, a criminal proceeding was brought against Plaintiff titled People of the State of New York v. Anthony Barksdale in the Criminal Court of the City of New York, Bronx County under docket number 2016BX018743.

21. As a result of this criminal complaint, Plaintiff had to appear publicly as a criminal defendant in court many times.

22. Because the charges in the criminal proceeding had no merit, on July 5, 2017, all charges against Plaintiff (who was a criminal defendant at the time) were dismissed before the case ever went to trial.

FIRST CAUSE OF ACTION

(Violation of 42 U.S.C § 1983)

23. Plaintiff repeats and re-alleges every allegation in this complaint.

24. Defendant Police Officers intended to confine and completely confined Plaintiff.

25. Plaintiff was cognizant of the confinement.

26. Plaintiff voiced objections to the confinement in which he did not consent.

27. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiff in any way.

28. Defendant Police Officers acted under color of law as is defined in 42 U.S.C. § 1983 in confining and incarcerating Plaintiff and in violating Plaintiff's rights and discriminating against him and profiling him because of his race.

29. Defendant Police Officers violated Plaintiff's civil liberties and rights under the United State Constitution, including, but not limited to, the Bill of Rights, and rights under the New York State Constitution.

30. Pursuant to 42 U.S.C. § 1983, Plaintiff is entitled to damages from Defendant Police Officers for violations of Plaintiff's constitutionally protected civil rights.

31. Defendant CITY has maintained a system of review of police conduct that is so untimely and cursory as to be ineffective and has a policy to permit and tolerate the unreasonable and excessive use of force and lack of discretion in making arrests by police officers.

32. The acts, omissions, systemic flaws, policies, and customs of Defendant CITY caused Defendant Police Officers to believe that the excessive and unreasonable use of force and falsely arresting individuals, such as Plaintiff based upon, among other things, racial motives, would not be aggressively, honestly, and properly investigated, with the foreseeable result that officers are more likely to use excessive or unreasonable force and against Plaintiff and in falsely arresting Plaintiff and others in the future.

33. Consequently, pursuant to 42 U.S.C. § 1983, Plaintiff is also entitled to damages from Defendant CITY for violations of Plaintiff's constitutionally protected civil rights against.

34. Finally, all Defendants are liable for paying Plaintiff an award of counsel fees in an amount to be determined by this court pursuant to 42 U.S.C. § 1988.

SECOND CAUSE OF ACTION

(False arrest/imprisonment)

35. Plaintiff repeats and re-alleges every allegation in this complaint.

36. Defendant Police Officers intended to confine and completely confined Plaintiff.

37. Plaintiff was cognizant of the confinement.

38. Plaintiff voiced objections to the confinement in which he did not consent.

39. Defendant Police Officers were not justified, privileged, or provoked into confining Plaintiff.

40. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they confined and falsely arrested and imprisoned Plaintiff.

41. Defendant CITY is, therefore, vicariously liable for falsely arresting and imprisoning Plaintiff.

42. Thus, all Defendants are liable for falsely arresting and imprisoning Plaintiff.

THIRD CAUSE OF ACTION**(Battery)**

43. Plaintiff repeats and re-alleges every allegation in this complaint.
44. Defendant Police Officers' acts were intentional.
45. Defendant Police Officers' conduct resulted in harmful, offensive, and nonconsensual bodily contact with the Plaintiff amounting to the civil tort of battery.
46. Defendant Police Officers acted within the scope of their duties as police officers for the CITY and in the interest of the CITY when they battered Plaintiff.
47. Defendant CITY, therefore, is vicariously liable for the battery that Defendant police officers inflicted upon Plaintiff.
48. Thus, all Defendants are liable for the tort of battery.

FOURTH CAUSE OF ACTION**(Negligence)**

49. Plaintiff repeats and re-alleges every allegation in this complaint.
50. Defendant Police Officers had a duty to protect and not arrest citizens who commit no crime.
51. Defendant Police Officers breached that duty by failing to exercise reasonable care and judgment in determining whether to arrest Plaintiff.
52. The actions of Defendant Police Officers caused Plaintiff to suffer damages.
53. Consequently, Defendant Police Officers are liable for negligence.
54. Defendant Police Officers acted within the scope of their duties as police

officers for Defendant CITY and in the interest of the CITY when they arrested Plaintiff.

55. Defendant CITY, therefore, is vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as police officers.

56. Thus, all Defendants are liable for negligence.

FIFTH CAUSE OF ACTION

(Negligent Hiring and Retention)

57. Plaintiff repeats and re-alleges every allegation in this complaint.

58. Defendant CITY had a duty to hire and retain competent police officers.

59. Defendant CITY knew, or should have known, that Defendant Police Officers were unfit to be hired and retained as police officers of the New York City Police Department.

60. Defendant CITY breached its duty to hire and retain competent police officers.

61. As a result of the CITY's breach, the Plaintiff suffered damages.

62. Thus, Defendant CITY is liable for negligent hiring and retention of Defendant police officers.

SIXTH CAUSE OF ACTION

(Malicious Prosecution)

63. Plaintiff repeats and re-alleges every allegation in this complaint.

64. Defendants brought a prior criminal proceeding against Plaintiff.

65. On July 5, 2017, the prior criminal proceedings terminated in favor of Plaintiff (where Plaintiff was named a criminal defendant).

66. Defendant Police Officers lacked probable cause to handcuff, arrest, imprison, and prosecute Plaintiff.

67. Defendant Police Officers had malice in prosecuting Plaintiff in the prior criminal proceedings.

68. Defendant CITY is vicariously liable for the actions of Defendant Police Officers, who acted within their scope of employment as New York City Police Department officers.

69. Thus, all Defendants are liable for malicious prosecution.

WHEREFORE, Plaintiff demands judgment as follows:

- (a) on the First Cause of Action (42 U.S.C § 1983), actual and punitive damages in the amount of \$2 million and, pursuant to 42 U.S.C. § 1988, attorney's fees against all Defendants;
- (b) on the Second Cause of Action (False arrest/imprisonment), actual and punitive damages in the amount of \$2 million against all Defendants;
- (c) on the Third Cause of Action (Battery), actual and punitive damages in the amount of \$2 million against all Defendants;
- (d) on the Fourth Cause of Action (Negligence), actual damages in the amount of \$2 million against all Defendants;
- (e) on the Fifth Cause of Action (Negligent Hiring and Retention), actual damages in the amount of \$2 million against Defendant CITY;

(f) on the Sixth Cause of Action (malicious prosecution), actual and punitive

damages in the amount of \$2 million; and

(g) costs, disbursements, interest, and such other relief that is appropriate.

Dated: Great Neck, New York
August 13, 2018

Yours, etc.,

PETER M. AGULNICK, P.C.

By: 

Peter M. Agulnick

Attorney for Plaintiff

ANTHONY BARKSDALE

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